

vest absolutely, so as not to be divested by subsequent death in the lifetime of the tenant for life (*d*).

6. **Vesting of portions.** — Where portions are expressly made to vest in sons at twenty-one, and in daughters at twenty-one or marriage, if any son or daughter die before that period the share sinks into the estate (*e*), even though the instrument direct the interest on the portion to be applied during minority towards that child's maintenance (*f*).

7. **Where raisable out of rents.** — Several cases, however, seem to have made good the exception that where no time is named in the settlement for vesting, and the portions are to be raised, not out of the *corpus*, but out of the annual *rents and profits*, and the rents and profits have begun to be available for the purpose, then the portionist takes a vested interest, though he dies in infancy (*g*). The portion must, as a whole, be either vested or not vested, and cannot be intermittent, *and therefore as the trust to [*400] raise the portion has commenced it must go on.

[8. **Appointment to infant.** — The question arose in the recent case of *Henty v. Wrey* (*a*), whether a power to appoint portions could be so exercised as to vest portions absolutely in children of tender years, and Kay, J., relying on *Lord Hinchinbroke v. Seymour* as reported by Brown (*b*), held that it could not, but that such an appointment would be so improper that the Court would control it by refusing to allow the portions to be raised if the children did not live to want them. But this view was overruled on appeal, when the late M. R., after careful consideration of the case of *Lord Hinchinbroke v. Seymour*, came to the conclusion that it was really decided on the ground of fraud on the

B. C. C. 395; *Teynham v. Webb*, 2 Ves. sen. 209; *Davies v. Huguenin*, 1 H. & M. 730, see 743; [*Henty v. Wrey*, 19 Ch. D. 492;] and see *Evelyn v. Evelyn*, 2 P. W. 659, and the cases there cited; *Tunstal v. Bracken*, 1 B. C. C. 124, note; *Mayhew v. Middleditch*, 1 B. C. C. 162.

(*d*) *Davies v. Huguenin*, 1 H. & M. 730; *Macoubrey v. Jones*, 2 K. & J. 684.

(*e*) *Jennings v. Looks*, 2 P. W. 276; *Boycot v. Cotton*, 1 Atk. 552.

(*f*) *Hubert v. Parsons*, 2 Ves. sen. 201.

(*g*) *Evelyn v. Evelyn*, 2 P. W. 659; *Cowper v. Scott*, 3 P. W. 119; *Earl of Rivers v. Earl of Derby*, 2 Vern. 72.

[(*a*) 19 Ch. D. 492; 21 Ch. D. 332.]

[(*b*) 1 B. C. C. 395.]